

2018 P L C (C.S.) 539

[Lahore High Court]

Before Jawad Hassan, J

MUHAMMAD QASIM

Versus

GOVERNMENT OF PUNJAB and 2 others

W.P. No.25814 of 2016 decided on 11th December, 2017.

Civil Servants (Appointment and Conditions of Service) Rules, 1974---

---R. 17-A---Appointment---Eligibility---Threshold of requisite qualification---Rounding up the marks---Scope---Petitioner contended that he had fulfilled prescribed formalities for the appointment of junior clerk in place of his father who had been permanently incapacitated--- Authorities contended that petitioner had secured less than 45% marks in Matriculation so he, at the most, was eligible for the post of Naib Qasid---Validity---Report and para-wise comments filed by the respondents revealed that prescribed qualification for the appointment as junior clerk according to Government Notification and Authority, qualification and mode of appointment of the employees, under the Rules of the Authority petitioner was required to have Matriculation certificate with minimum 45% marks with typing speed of 40 words per minute in English or 30 words per minute in Urdu along with having knowledge and skill of MS Office, Word Processing, Spread Sheet Development and composing etc.---Held, percentage of marks secured by the petitioner in Matriculation i.e. 44.94% could be considered as 45% and rest of the two tests/requirements would be taken by the Authority in accordance with the procedure prescribed under the law---High Court directed that in case the petitioner would qualify for the rest two tests/requirements, he would be issued appointment letter for junior clerk---Constitutional petition was disposed of accordingly.

Askari Hasnain v. Secretary Establishment and others 2016 SCMR 871 ref.

Muhammad Yar Sial for Petitioners.

Mubeen ud Din Qazi for Respondents.

JUDGMENT

JAWAD HASSAN, J.-- Through this petition, filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the "Constitution") the Petitioner has sought a direction to the Respondents for his appointment to the post of Junior Clerk under Rule 17-A of the Civil Servants (Appointment and Conditions of Service) Rules, 1974 (the "Rules").

2. The facts tersely revealed from this petition are that the father of the Petitioner was appointed as Naib Qasid in the Office of Board of Intermediate and Secondary Education, Faisalabad and subsequently promoted as Junior Clerk on 17.02.2015. Thereafter, his father was declared permanently incapacitated for further service and invalidation certificate was

issued vide letter No.9722 dated 23.12.2015. In pursuance of which the Petitioner filed application under Rule 17-A of the Rules for his appointment as Junior Clerk having 382 marks out of 850 marks (44.94%) in matriculation in the year 2008 and secured 461 marks out of 1100 marks (41.91%) in intermediate examination in the year 2010. But he was not entertained on the ground that prescribed formalities are not fulfilled by the Petitioner and at the most he is only eligible for the post of Naib Qasid. Ultimately, he filed W.P. No.17083/2016 which was disposed of with the direction to the Respondents to decide the same within six weeks. In pursuance of which the Respondents passed order dated 10.06.2016 which has been assailed by the Petitioner in this petition.

3. Report and parawise comments have been filed on behalf of the Respondents vehemently denying the allegations levelled in the petition and praying for dismissal of the same.

4. Learned counsel for the Petitioner contended that the Petitioner is eligible for the post of Junior Clerk but the Respondents are not considering him rather giving option to accept the post of Naib Qasid which is totally illegal and against the law and facts; that the Petitioner is duly qualified and fit for the post of Junior Clerk as he has additional education as F.A. in addition to the required qualification i.e. matriculation; that the percentage of Petitioner's marks is nearest to 45% but the Respondents misconceived the fact; that according to the policy the Petitioner being the son of Government employee was entitled to get the appointment as per his qualification. Learned counsel for the Petitioner has placed reliance on the case Askari Hasnain v. Secretary Establishment and others (2016 SCMR 871).

5. Learned counsel for the Respondents vehemently contested the arguments advanced by the learned counsel for the Petitioner and prayed for dismissal of these petition.

6. Arguments heard and record perused.

7. At the outset learned counsel for the Respondents submitted that as the Petitioner does not qualified for the post of Junior Clerk, therefore, he can be accommodated on the post of Naib Qasid. But the learned counsel for the Petitioner submitted that the Petitioner has the requisite qualification for the appointment on the post of Junior Clerk under Rule 17-A of the Rules.

8. The perusal of the report and parawise comments filed by the Respondents reveal that the prescribed qualification for the appointment as Junior Clerk according to Government Notification and Board of Intermediate and Secondary Education Faisalabad Qualification and Mode of Appointment of Employees, Rules, 2012 (the "Rules of 2012"), the Petitioner was required to have matriculation with minimum 45% marks with typing speed of 40 words per minute in English or 30 wpm in Urdu along with having knowledge and skill of MS Office, Word Processing, Spread Sheet Development and Composing etc. The judgment of the Hon'ble Supreme Court of Pakistan, Askari Hasnain supra produced by the Petitioner clearly reveals as under:--

"The petitioner claims that he has earned 59.60% marks and the threshold for qualification promotion is 60% marks. The Selection Board could have rounded the marks in terms of FR-17, which would have made him entitled to promotion. We believe that such rounding up is not unusual and is provided under rule 17 of the Fundamental Rules, therefore, this issue could be resolved without traveling further."

9. From the above, it can safely be held that the percentage of marks secured by the Petitioner in matriculation i.e. 44.94% can be considered as 45%. Therefore, on the basis of the judgment of the Hon'ble Supreme Court of Pakistan supra the Respondents shall consider the percentage of the Petitioner's marks in matriculation as 45% and rest of the two tests/ requirements viz: typing speed 25 words per minutes on computer and having knowledge in MS Office applications shall be taken by the Respondents in accordance with the procedure prescribed under the law. In case the Petitioner qualifies for the rest two tests/ requirements, he shall be issued appointment letter of Junior Clerk.

10. In view of above direction, the instant petition stands disposed of.

MQ/M-202/L Petition disposed of.